
MASTER SERVICES AGREEMENT

THIS MASTER SERVICES AGREEMENT("Agreement") is made as of 17th December 2025 by and between **Prophecy Consulting Inc**, a CA Corporation located at **7545 Irvine Center Dr, Ste 200, Irvine, CA 92618** ("Client") with Federal Tax ID: **46-5026539**, and **Astir Services LLC** located at **50 Cragwood Road, Suite 219, South Plainfield, NJ 07080.**, ("Provider") with Federal Tax ID: **27-4067217**

WITNESSETH

WHEREAS Provider is an independent contractor who provides consulting services; and

WHEREAS Client wishes to purchase consulting services in form of Contract Employees to be placed on a site of Client; and

WHEREAS, as used herein, the term "Contract Employee(s)" means an individual employed by Provider, temporarily placed with Client pursuant to this Agreement.

NOW, THEREFORE, in consideration of the mutual premises hereinafter set forth and of other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, Client and Provider, intending to be legally bound, hereby agree as follows:

- 1 **Engagement.** Client hereby engages Provider, on a non-exclusive basis, to provide Services (as defined below) pursuant to one or more purchase orders to be executed by the parties (each a "Purchase Order"), upon the terms and conditions set forth herein, and Provider hereby accepts the engagement. Each Purchase Order shall be mutually agreed upon in writing by Provider and Client before commencement of the work called for by such Purchase Order. A Purchase Order is a request for additional Services and/or changes to Services and shall not be effective unless and until accepted in writing by both parties.
- 2 **Termination.** This Agreement shall commence on the Effective Date and continue for a term of three (3) years with automatic one (1) year renewals unless terminated as set forth herein. Either party may terminate this Agreement with thirty (30) days' written notice. Client may terminate immediately for performance issues, insolvency, breach of obligations, or at Client's request. If a breach is capable of remedy, the breaching party has fourteen (14) days after notice to cure. Upon termination, Client may require Provider to continue Assignments through current requisitions or waive placement/transition fees to release workers to Client or its client.
- 3 **Contract Employees.** Provider shall supply Contract Employees per Client requisitions, ensuring they have requisite skills, work authorization, and complete all background and compliance checks as mandated by Client, including use of specified vendors. Provider shall ensure workers complete all mandatory security and client trainings within two (2) weeks of assignment start. No remote work unless approved in writing.

Provider shall not subcontract labor without Client's prior written approval and total subcontracted personnel shall not exceed 40% of all Provider personnel assigned. Provider must provide quarterly due diligence and self-assessment forms on ownership, subcontractors, and compliance.

- 4 Requisite Skills. Provider specifically acknowledges and agrees that all Contract Employees shall have the requisite knowledge, expertise, experience and training to perform the Services in a timely, competent, and professional manner, and that Client will not be required to provide Contract Employees with any training concerning the manner or methods of performance of the Services, nor will Client provide Contract Employees with any tools or equipment to complete the Services (unless otherwise specified in the applicable Purchase Order).
- 5 Equal Opportunity Employment. Provider will provide qualified Contract Employees without regard to any protected category under applicable state or federal law, including without limitation race, religion, age, gender, national origin, sexual orientation, physical handicap or marital status.
- 6 Independent Contractor. Provider acts as an independent contractor. Provider and/or Contract Employee will not represent itself as an employee, agent or legal representative of Client. Provider shall be responsible for providing any salaries, benefits, wages, and other forms of compensation to Contract Employees. Contract Employees are not entitled to participate in any Client benefit plans. Provider will promptly reimburse Client for any taxes Client is required to pay or withhold with respect to Contract Employees.
- 7 Taxes. Provider will be responsible for paying all federal, state, municipal, or other taxes as are required by any law, regulation, or ruling, including without limitation federal and state employment taxes related to performance of the Services. Provider is responsible for withholding and reporting to the Internal Revenue Service and applicable state/local taxing authorities' any and all wages earned in the performance of the Services by Employees.
- 8 Invoicing & Payments: Provider shall use Client's VMS/timesheet system to record daily hours and submit invoices based on approved time and expenses. Any unbilled time or expenses more than ninety (90) days old will be forfeited. Provider will be paid only after Client has received payment from its end client for the applicable work ("pay-when-paid"). Provider has thirty (30) days from availability of the Remittance Report to dispute billing or payment accuracy; failure to dispute is deemed acceptance. Client may offset overpayments, asset replacement costs, MSP fees, penalties, or any other owed amounts against invoices or future payments. Provider agrees to promptly refund Client any amounts Client is required to return to its client due to errors, fraud, or overpayment, within five (5) business days of demand. All invoices and payments shall conform strictly to the rates, pricing, and other terms set forth in **Exhibit A** (Pricing), which is incorporated by reference. Provider may not invoice Client at any rate or charge not authorized in **Exhibit A** or the applicable Purchase Order without Client's prior written consent.

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- 9 Expenses. Provider shall be responsible for all expenses incurred in the performance of the Services unless specifically agreed upon by the parties in writing in advance. Only pre-approved expenses reimbursed; must include documentation per Exhibit B “Guidelines for Reimbursement.”
 - 10 Legal Compliance. Provider shall comply with all applicable laws and maintain all necessary permits and licenses. Provider represents and warrants compliance with immigration, background check, wage and hour, and tax obligations.
 - 11 Books and Records. Provider shall keep and shall preserve for four (4) years after final completion of all Services , accurate and detailed records of all timesheets, ledgers, books of account, invoices, vouchers, cancelled checks, and other documents or records evidencing or relating to the Services and disbursements charged to Client under this Agreement (collectively, “Books and Records”). Any and all Books and Records must be maintained in accordance with generally accepted accounting principles and must be sufficiently complete and detailed so as to permit an accurate evaluation of the Services provided by Provider under this Agreement. During such four (4) year period, Provider shall give Client and its agents, during normal business hours, access to such Books and Records and Client and its agents shall have the right to make copies of any of the said Books and Records according to what is allowable based on Federal, State, City and HIPAA laws set forth and will not cause a confidentiality breach. Provider shall submit quarterly self-assessments and due diligence declarations to Client. If audit reveals overbilling or other errors, Provider shall refund the amount plus any applicable interest and Client may offset against future invoices.
 - 12 Confidentiality. Provider and its Contract Employees may receive Confidential Information. All such information is confidential and may not be disclosed without Client’s written consent. Provider must ensure each Contract Employee signs a nondisclosure agreement acceptable to Client before starting work.
 - 13 Data Protection. Provider shall comply with GDPR and applicable data privacy laws, implement SOC 2 Type II / ISO 27001 level controls, and notify Client within forty-eight (48) hours of any security incident or breach. Provider shall appoint a security officer, maintain policies, and provide evidence of compliance on request.
 - 14 Asset Return. Provider must ensure Contract Employees return all Client or Client’s client assets within two (2) weeks after termination of assignment. Provider shall reimburse the replacement cost of any unreturned or damaged assets within one (1) week, failing which Client may withhold equivalent amounts from invoices.
 - 15 Non-Disclosure of Confidential Information to Third Parties. Provider will not, during or at any time after termination without prior written authorization of Client, disclose or make use of

Confidential Information in any medium, including social media. Provider may not refer to Client, Provider's status as a vendor for Client, or the Confidential Information either explicitly or implicitly, in social media or otherwise, without prior written authorization of Client.

- 16 E-mail. Contract Employees shall acquire no privacy rights on Client's electronic mail (e-mail) system. Client reserves the right to monitor and retrieve material transmitted over the e-mail, instant message system or any other social medium. Contract Employees shall not send any information with regard to Client to any individual who is not affiliated with Client.
- 17 Provider Warranties. On behalf of Provider and all Contract Employee(s), Provider represents and warrants:
- a. Provider represents and warrants that:
 - It will use best technical practices and perform services in a timely, economical manner.
 - b. All work products will be in accordance with the terms and specifications in this Agreement and applicable Purchase Orders, and will substantially comply with Client's further direction and instructions;
 - c. All work product is original or fully licensed and will not infringe any third-party rights
 - d. All work product shall be deemed work-for-hire of Client and fully assignable to Client; and
 - e. Provider and Contract Employees will comply with Client policies when at Client premises, including any workplace and safety policies and procedures.
 - f. At the time of acceptance, all work and/or services and each deliverable will conform to Client's specifications and requirements and Provider will correct or repair, at no cost to Client, any defect, malfunction, or non-conformity that prevents such deliverable from conforming or performing as warranted.
 - g. Provider and Contract Employees will comply with Client policies when at Client premises, including any workplace and safety policies and procedures.
- 18 Intellectual Property. As a condition of this Agreement, Provider expressly agrees that Client is the exclusive and sole owner of all work product of every kind performed by any Contract Employee on behalf of Client and All works of authorship, inventions, and improvements are deemed works-for-hire of Client. Provider agrees to execute all necessary documents to vest ownership in Client. Provider agrees to execute all necessary documents to vest ownership in Client. Provider further agrees to sign (or procure signature from Contract Employee) all lawful papers, execute all documents, including but not limited to, assignments, licenses and applications for applicable patents, copyrights and trademarks, and to do everything possible to vest title in Client and to aid Client, its successors, assigns and legal representatives to obtain and enforce ownership of and proper protection for the above-mentioned intellectual property rights. Provider's obligations under this section shall continue in full force and effect notwithstanding the expiration or other termination of this Agreement.

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- 19 Indemnification. Provider shall indemnify, defend, and hold harmless Client, Client's client, and their affiliates from any claims arising from Provider's services, including misclassification of workers, wage/tax issues, employment claims, asset losses, tax information errors, or breach of client contract obligations. Provider's duty to defend is immediate upon notice of a claim.
- 20 Breach; Attorney's Fees. Failure to submit proper billing or failure to comply with invoicing obligations constitutes a material breach of this Agreement. In the event of a breach, the non-breaching party may terminate immediately and pursue all remedies at law or in equity. In the event of impossibility of performance due to circumstances beyond a party's control (force majeure), such non-performance shall be excused. The prevailing party in any action shall be entitled from the other party its reasonable attorney's fees and other expenses of litigation.
- 21 Modifications. No change or modification of this Agreement shall be valid unless the same is in writing and signed by Provider and Client.
- 22 Non-Solicitation.
- a. Provider agrees not to solicit Client employees or Client's client employees during the Agreement and for twelve (12) months thereafter.
 - b. Contact with Client. Except as required for the performance of this Agreement or the provision of Services hereunder, Provider shall not make direct contact with Client's employees or other contractors in any form, including but not limited to, email, voicemail, and phone or in person. Client shall provide Provider with all Client feedback as needed, relating to Contract Employees' performance.
 - c. Breach of Non-Solicitation. In the event of Provider's breach or threatened breach of this Section 20, Client shall be entitled to a preliminary restraining order and an injunction restraining and enjoining Provider from violating its provisions. In addition to the above, Client may pursue all other remedies as allowed by law or in equity.
 - d. Non-Solicitation of Personnel. During the term of this Agreement and any Purchase Order hereunder and for a period of one (1) year following termination or expiration thereof, Provider agrees not to (i) solicit or hire, or accept services from Client employees, directly or indirectly, or assist or encourage any third party to do so, except upon Client's express written consent, or (ii) directly or indirectly request, induce or advise any of Client's employees to withdraw, curtail or terminate their relationship with Client; provided, however, that the forgoing restriction shall not apply to the employment of any person who responds to any general recruitment advertisement by Provider in the normal course of business, without specifically targeting or approaching Client's employees.
 - e. In addition, during the term of this Agreement and/or any Purchase Order hereunder, and for a period of one (1) year thereafter, Client may not, either directly or indirectly, recruit or retain the services of any of Provider's employees, except through Provider or with Provider's express written consent; provided, however, that the forgoing restriction shall not apply to the employment of any person who responds to any general recruitment advertisement by Client in the normal course of business, without specifically targeting or approaching Provider's employees.

23 Integration. This Agreement is the entire agreement between the parties with respect to the subject of this Agreement, and no alteration, modification, or interpretation of this Agreement shall be binding unless in writing and signed by the parties.

24 Notices. Any notice to be given or to be served upon either party hereto in connection with this Agreement must be in writing and shall be deemed to have been given and received (i) when personally delivered, (ii) two (2) days after it is sent by Federal Express or similar overnight courier, postage prepaid and addressed to the party for whom it is intended, at that party's address specified below, or (iii) three (3) days after it is sent by certified or registered United States mail, return receipt requested, postage prepaid and addressed to the party for whom it is intended, at that party's address specified below. Either party may change the place for the giving of notice to it by thirty (30) days prior written notice to the other party as provided herein.

If to Client:

Prophecy Consulting Inc
7545 Irvine Center Drive, Suite 200
Irvine, CA 92618

If to Provider:

Astir Services LLC
50 Cragwood Road, Suite 219
South Plainfield, NJ 07080

25 Severability. The invalidity of any one or more of the words, phrases, sentences, clauses or paragraphs contained in the Agreement shall not affect the enforceability of the remaining portions of this Agreement or any part hereof, all of which are inserted conditionally on their being valid in law, and, in the event that any one or more of the words, phrases, sentences, clauses or paragraphs contained in this Agreement shall be declared invalid by any court of competent jurisdiction, this Agreement shall be construed as if such invalid words, phrase or phrases, sentence or sentences, clause or clauses, or paragraph or paragraphs had not been inserted.

26 Successors and Assigns. Neither this Agreement nor any of the rights or obligations of Provider arising under this Agreement may be assigned or transferred without Client's express prior written consent.

27 Headings. The paragraph headings contained in this Agreement are for reference purposes only and shall not affect in any way the meaning or interpretation of Agreement.

28 Governing Law. This Agreement shall be governed by and interpreted in accordance with the laws of the state of California, excluding any choice of law provision that would apply the laws of any other jurisdiction. Disputes will be escalated to management, then mediation, then

binding arbitration under AAA rules. The Superior Court of the State of California located in San Bernardino County shall have exclusive jurisdiction to adjudicate any dispute arising out of or relating to this Agreement, except for injunctive relief for breaches of confidentiality or non-solicitation. Each party hereby consents to the jurisdiction of such court and waives any right it may otherwise have to challenge the appropriateness of such forum, whether on the basis of the doctrine of forum *non convenience* or otherwise.

29 Survival. All rights and obligations hereunder that by their nature are to continue after any expiration or termination of this Agreement, including but not limited to, the confidentiality and indemnification obligations, shall survive any such expiration or termination.

30 Counterparts. This Agreement may be executed in any number of counterparts, each of which shall be deemed an original and all of which when taken together shall constitute one and the same instrument. Signatures may be delivered electronically or by facsimile and shall be binding upon the parties as if they were originals

IN WITNESS WHEREOF, the parties hereto have duly executed and delivered this Agreement as of the day and year first above written.

Prophecy Consulting Inc

Astir Services LLC

By Senthil Marimuthu

By _____

Name: **Senthil Marimuthu**

Name: **Sainath Singh**

Title: **Chief Executive Officer**

Title: **Contracts Administrator**

Date: 12/17/2025

Date: _____

EXHIBIT A

PRICING

The rate, expense reimbursement, and conversion terms applicable under the Program for services rendered to Prophecy's Client are as set forth below.

1. RATES

32 Markup % ("Supplier Markup")
Not to exceed a certain markup percentage on the Compensation as agreed between Prophecy and Supplier. Markup % shall "Compensation" means as gross wages and salary on the Supplier Personnel's period paystub. No deduction for payroll taxes or any employee contributions, whether taxable or nontaxable, to employee benefit programs (e.g., medical insurance, IRAs, 401(k)s, and the like) shall be made in calculating what comprises "gross wages and salary." TCS reserves the right to confirm compliance with this limit by audit of paystubs issued to the Supplier Personnel

Expected Rate Ranges (US Only)

Category	Representative skills/roles	Experience Range	Hourly Pay Range (USD)
Category 1	EUC, Service Desk, SOP based support (L1.5)	1-4 Years	30-40
		4 - 8 Years	35-45
		8-12 Years	40-50
		>12 Years	45-65
Category 2	Infrastructure Engineers & Admin (Network, Storage, Compute), IT Service Management, System DBA, Core Java, Core .Net, QA, Manual, Automation Testers	2 - 4 Years	40-55
		4 - 8 Years	50-65
		8 - 12Years	55-80

		> 12 Years	65-90
	Legacy (IBM Mainframe, AS/400, Cobol, DB2, CICS, JCL, REXX, MVS, VSAM, IMS DB/DC, IDMS, Synon, Telon, HP OpenView), CA7, Control-M, Application DBA, Project Managers, Program Managers, Business Analysts, Functional consultants,	2 - 4 Years	50-65
		4 - 8 Years	55-75
		8 - 12 Years	65-85
Category 3	Incident Managers, Change Managers, Testers (Functional, Performance, Security, Usability), Middleware (IIB, WMQ, WMB, Websphere, Weblogic, Corba, Tibco, Talend, Mulesoft), IAM (SiteMinder), J2EE frameworks (Hibernate, Spring, Struts), JSP, HTML, CSS, XML, Perl, Dot Net - C#.Net, ASP.Net, VB.Net, ADO.Net, C, C++, VC++, PL/SQL, SQL, T-SQL, Power BI, RTOS, Embedded, Linux Device Drivers, Firmware, Switching & Routing Protocols, Lotus Notes, Application Packaging, Patch Management	> 12 Years	75-105
Category 4	SAP Enterprise Suite (R/3, EH&S, FICO, EC, IM, PS, MM, PP, SD, QM, LO, PM, SAP LE, CS, SRM, PLM, SCM, APO, HCM, ESS, MSS, WF, BW, BI, CRM, ECM, MII, NetWeaver, EP, PI, GRC, Hybris, BODS, Fiori, EWM, GTS, MDG, WebDynpro), Oracle Enterprise Suite (EBS, SCM, Financials, Project Portfolio, HCM, CRM, Procurement, SRM, Oracle Applications, Contracts, VCM, Fusion), D365, Siebel, PeopleSoft, Ariba, JDE, BaaN, BI/DWH (Qlikview, QlikSense, Teradata, Pega, Hyperion, SAS, Biztalk, Delphi, IIS, Office365,	2 - 4 Years	50-65
		4 - 8 Years	60-80
		8 - 12 Years	70-90
		> 12 Years	80-105
	Sharepoint, Teradata, DataStage, ODS, AbInitio, Actuate, Cognos, Informatica, MicroStrategy, Tableau, Talend, Ingress, Microsoft Access-VBA, MS (SSIS, SSRS, SSAS, SSSS), Visual FoxPro, PL/SQL, MySQL, Sybase, Crystal Reports), Enterprise Content Management		
Category 5	Digital skills (FSD, DevSecOps, Microservices, Release Managers, Scrum Masters, RoR, PHP, Drupal, React JS, Angular JS) Mobile (Xamarin,	2 - 4 Years	50-65
		4 - 8 Years	60-80

	iOS,Android), Cloud (Kubernetes, Docker, Cloud Platformproducts), AI/ML, Generative AI, Cyber Security, AEM,IoT, PLM, Data & Analytics (Python, R, Hadoop,Py/Spark, Scala, Kafka, Data Science), RPA	8 - 12 Years	70-90
		> 12 Years	80-105
Category 6	SAP IS Modules, SAP S4/Hana, Oracle IS Modules, OIC, Workday, SuccessFactors, Service Now, Salesforce, Service Cloud, Guidewire, Manhattan, Engineering Skills (Plant Systems, VLSI)	2 - 4 Years	50-65
		4 - 8 Years	65-85
		8 - 12 Years	75-95
		> 12 Years	85-110

(a) Prophecy and Prophecy's Client shall mutually develop hourly billable rates, incorporated into a rate card which, upon acceptance of the requisition of Prophecy's Client, shall be charged by Supplier according to classification, experience level and location. The rate card will be available for Supplier to view in the VMS.

(b) Prophecy's Client shall not be billed for more than the standard forty (40) hour week (or more than 8 hours per day for Contingent Worker in California and Alaska) without prior authorization from Prophecy or Prophecy's Client and as it is stipulated in the VMS. When Contingent Worker work more than forty (40) hours per week (or more than 8 hours per day for Contingent Worker in California and Alaska) as requested by Prophecy or Prophecy's Client and as approved in the VMS, and such Contingent Worker are required to be compensated at a higher overtime rate according to federal/state law, the following overtime multipliers shall apply to existing and new Contingent Workers:

(c) All overtime billable hours must be preapproved by Prophecy's Client prior to any Contingent Worker submitting and invoicing overtime. In the event overtime is not approved and Contingent Worker invoices such overtime, Prophecy's Client shall have the right to reject overtime billable hours. For the avoidance of doubt, Supplier shall at all times be required to pay Contingent Workers all overtime pursuant to relevant federal or state laws.

(d) When additional hours of work are approved by TCS, the charges for such additional hours will be billed only at the regular hourly rate set forth in the Accepted Requisition (without any premium), and the Supplier is responsible for paying the overtime rate. TCS acknowledges that non-exempt Supplier Personnel may not agree to overtime hours without approval from their employer.

(e) Supplier understands that any additional hours will be billed at the regular rate as set forth in the assignment on the VMS and the Supplier will be responsible for paying any applicable overtime e rate. Nonexempt Supplier Personnel must get approval from Supplier before working additional hours.

2. CONVERSION TERMS

1. Suppliers acknowledge that all TCS sourcing requirements are contract-to-hire positions. Supplier further agrees that TCS or Customer shall have the unrestricted right (but not the obligation) to solicit or hire any Supplier Personnel at any time, without any liability or obligation to Supplier, except as expressly set forth in this Section 5. Supplier shall ensure that it has obtained these rights from the Subcontractors and shall ensure their compliance with these terms.
2. As a material inducement for TCS to enter into this Supplier Agreement, Supplier: (i) unconditionally agrees not to prevent or hinder TCS from hiring any Supplier Personnel at any time; (ii) waives restrictions (including any non-compete provisions) and penalties (if any) imposed under any employment agreement or other agreements between Supplier and applicable Supplier Personnel who TCS may wish to hire; (iii) unconditionally agrees to release such Supplier Personnel from any restrictions from accepting offer of employment that may be extended by TCS and Supplier hereby consents for TCS to hire such Supplier Personnel and ensure the same for any Supplier Personnel from a Subcontractor.
3. If TCS hires Supplier Personnel during the term or any termination assistance period, and the hire date is within three months after that Supplier Personnel joined TCS as a Supplier Personnel, prophecy shall pay to Supplier a one-time hiring fee of USD 3,500 per Supplier Personnel in US (the "Hiring Fee"). No Hiring Fee shall be due if the hiring occurs three months after that Supplier Personnel joins TCS as a Supplier Personnel. If TCS exercises rights of hire under this Section, TCS shall provide notice to Supplier of so doing, but TCS shall not be required to obtain consent or any form of approval from Supplier for this hiring.
4. Hiring Fee(s) shall be paid within fifteen (15) days after the hired Supplier Personnel completes sixty (60) days of employment with TCS. No Hiring Fees are due if such hired personnel leaves the employment of TCS for any reason or if TCS terminates the employment of such person for any reason other than for its convenience within the aforementioned sixty (60) day period. Supplier will refund to Prophecy the Hiring Fee(s), if any, previously paid by TCS in connection with such person's hiring by TCS. Prophecy shall be entitled to recover any refund from Supplier, including by offsetting any amount due to Supplier from Prophecy against such amount recoverable from Supplier.
5. Further, if this Supplier Agreement or any Accepted Requisition is terminated for breach of contract or if Supplier ceased to do business or otherwise seeks the protection under any provisions of bankruptcy laws or is insolvent, or if Supplier fails to pay salary or benefits due a Supplier Personnel in accordance with applicable laws, in each of such circumstances, TCS or its other vendors shall have the right (but not the obligation) to offer employment and hire the relevant Supplier Personnel, without any obligation or liability to Supplier. No Hiring Fees shall be payable to Supplier for any such hiring. This Section shall apply to all Subcontractors and their personnel as well.

3. MSP FEE / VMS FEE

Managed Services Provider Fees. MSP Fees will be based on the total number of billable hours and/or fixed milestones approved and in “Invoiced” status in the VMS on a weekly basis.

Prophecy shall have the right to collect or deduct such fee from Supplier an amount equivalent to 2.0% on the total charges connected to Supplier’s attributable Services delivered each month under the SMA, exclusive of expense reimbursement. Prophecy may elect to deduct the amount of the MSP fee directly from Supplier payment received from Prophecy’s Client attributable to Supplier’s Services, and the balance shall be accepted by Supplier as payment in full for Services rendered under the SMA.

4. DISCOUNTS/REBATES

TCS shall be entitled to a volume discount on the charges paid to the Supplier in each Contract Year (as defined in the Agreement between Prophecy and TCS) , in accordance with the below Table.

- The rebates will be deducted from each invoice, based on the projected Spend Band in the table below, prior to payment being released to Supplier.
- At the end of each Quarter, Prophecy and Supplier will ‘true up’ based on the projected Spend Band. However, if Supplier crosses a Spend Band threshold during a Quarter, Prophecy will increase the rebate to the next spend band level which will be effective for all subsequent invoice rebate deductions (For clarity – Prophecy is not required to wait until the quarterly ‘true up’ with Supplier.)

Spend Band (USD Mn)	VD Rate%	EFT payment discount %
0 to 25,000,000.00	2.40%	0.4%
25,000,000.01 to 50,000,000.00	2.60%	0.4%
50,000,000.01 to 75,000,000.00	2.90%	0.4%
75,000,000.01 to 100,000,000.00	3.30%	0.4%
100,000,000.01 to 150,000,000.00	4.00%	0.4%
150,000,000.01 to 300,000,000.00	4.75%	0.4%
300,000,000.01 and above	5.75%	0.4%

6. PAYROLL SERVICES RATES

Payroll Services Rates are defined based upon Visa requirements.

- Referred Candidates requiring NO Visa sponsorship:
 - Shall not exceed a 20% mark-up.
 - Invoiced amounts for this category of worker shall be excluded from the Volume Discount calculation.
- Referred Candidates requiring Visa sponsorship:
 - Shall not exceed a 32% mark-up.
 - Invoiced amounts for this category of work shall be included in the Volume Discount calculation

**Supplier Master Agreement (“SMA”)
Prophecy MSP Client – Tata Consultancy Services (“TCS”)**

EXHIBIT B

GUIDELINES FOR REIMBURSEMENT OF EXPENSES

These are the guidelines for reimbursement of travel related claims incurred by Supplier Personnel. Supplier Personnel are expected to exercise prudent business judgement regarding expenses covered by this policy.

The Supplier Personnel will need to incur the cost upfront. Post completion of travel, the Supplier Personnel will need to submit receipts of all expenses to their Supplier for these expenses to be processed. With these receipts, the Supplier will raise a formal claim in the Claims Module of TCS GBAMS. Once raised in GBAMS, the claim will need to be approved by a TCS manager in GBAMS.

General Guidelines:

1. Travel

- All air bookings should be made for economy class (coach) travel.
- All train bookings should be made for economy class (coach) travel.
- All hotel bookings should be made for a standard / economy room up to a maximum of \$150 per day.
- The Supplier Personnel should not ask the TCS project team to raise guest booking through TCS Ultimatix.
- Mileage claims for customer mandated travel by personal car should be made per the standard
- mileage rates from IRS. For calendar year 2024, it is \$0.67 per mile

2. Rental Cars

- Rental Cars should be booked directly with the car rental agency
- All rentals should be for compact cars, unless three or more TCS associates are traveling together
- Car rentals must be documented on expense reports with original car rental receipts

3. Meals and incidentals

Meals and incidental expenses will be reimbursed on actual to maximum of \$50 per day. This expense limit includes all of the following:

- All meals
- Room service
- Laundry, dry cleaning services

Important Guidelines to adhere to:

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- Claims raised after 3 months of the date incurred are not reimbursable.
 - A Claim raised should be for one Supplier Personnel only. A single claim cannot have expenses of another Supplier Personnel(s) included. A claim request for a Supplier Personnel should include all expenses incurred for that particular travel.
 - No other expenses, other than those mentioned above are reimbursable.
 - All claims will need to be accompanied by the appropriate business team's approval. The business team's approval has to be uploaded as part of the claim request. A claim raised without the approval of the business team will be rejected.
 - International travel of Supplier Personnel is not allowed. Such claims are not reimbursable. Any exceptions will require the approval of TCS authorized personnel. The approval has to be uploaded as part of the claim request. A claim raised without the approval of TCS authorized personnel will be rejected.
 - Each claim has to have a corresponding itemized receipt. Just credit card receipts, are not acceptable as per TCS policy.
 - Expenses towards alcoholic beverages will not be reimbursed.
 - Expenses towards internet and telephone/ cellphone charges will not be reimbursed. If required for service delivery, the TCS project team needs to make requisite arrangements for the Supplier Personnel through the TCS Admin Support Team.
 - Expenses towards travel related consumables - luggage/ bags, clothing, shoes, etc. are not reimbursable.
 - Expenses towards early check-in, seat upgrades, airline club dues and upgrades are not reimbursable.
 - Parking tickets / traffic violations are not reimbursable.
 - Expenses towards hotel internet service, health club facilities, hotel room snacks/ mini bar, hotel room movies are not reimbursable.
 - TCS will monitor the number of occurrences where non-reimbursable expenses are claimed by the Supplier. TCS reserves the right to restrict Supplier's access to GBaMS if the number of such occurrences are more than 3 (three) in a calendar quarter.



7545 Irvine center drive,

Suite # 200, Irvine, CA 92618

onboarding@prophecytechs.com

Phone: 551.689.4006

VENDOR WORK ORDER

This work order is being issued in accordance with the Master Services Agreement signed between **Prophecy Consulting Inc** and **Astir Services LLC**

Consultant's Full Name	Shruti Pandey
Client Name	Albertson
Client Location	11555 Dublin Canyon Rd, Pleasanton, CA 94588
Remote Location	1162 Oakpoint Drive, Bay Point, CA 94565
Start Date	2 nd January 2026 (Tentative)
Duration	06+ months with possible extension
Bill Rate	88\$/hr on C2C

CONDITIONS:

1. Payment terms: Net 45 days from the invoice receipt date.
2. The start date is tentative, subject to successful completion of BGC with no negative remarks and is also subject to the start date confirmation from the client as per their portal.
3. LCA amendment, if applicable, should be filed with proper work location address and a certified copy has to be sent before starting the consultant on the project.



7545 Irvine center drive,

Suite # 200, Irvine, CA 92618

onboarding@prophecytechs.com

Phone: 551.689.4006

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4. If the Vendor fails to complete the onboarding of the Consultant mentioned above for any reason after initiating the Background Check (BGC) and/or Drug Test, Prophecy reserves the right to recover the actual cost of the BGC and/or Drug Test from the Vendor. Additionally, Prophecy will deduct the BGC cost from the Vendor's first payment.
 5. The last payment due to the vendor for the above-mentioned Consultant(s) will only be sent once the Prophecy accounts team has reconciled the file to ensure that no payment discrepancies have been found. Prophecy will inform the Supplier in case of any issues. Prophecy shall not be held liable for any delays arising as a result of the discrepancy.
 6. Payment terms will be established based on the date the complete and undisputed invoice, along with the approved timesheet, is received. In line with our company policy, invoices must be submitted monthly to **accounts@prophecytechs.com**.

The undersigned has/have read, understand(s) and agree(s) to terms and conditions herein.

Accepted by: Senthil Marimuthu

Name: Senthil Marimuthu

Title: Chief Executive Officer

For: **Prophecy Consulting Inc**

Date: 12/17/2025

Accepted by: _____

Name: Sainath Singh

Title: Contracts Administrator

For: Astir Services LLC

Date: